

STATE OF NEW YORK

9385--A

IN SENATE

March 6, 2026

Introduced by Sen. ZELLNER -- read twice and ordered printed, and when printed to be committed to the Committee on Racing, Gaming and Wagering -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the racing, pari-mutuel wagering and breeding law, in relation to additional qualifications for the board members of regional off-track betting corporations; and to amend section 2 of part JJ of chapter 56 of the laws of 2023 amending the racing, pari-mutuel wagering and breeding law, relating to the membership of the board of directors of the western regional off-track betting corporation, in relation to the effectiveness thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 1 of section 502 of the racing, pari-mutuel
2 wagering and breeding law, as amended by chapter 710 of the laws of
3 1990, is amended to read as follows:
4 1. a. A regional off-track betting corporation is hereby established
5 for each region, except the New York city region for which the New York
6 city off-track betting corporation established pursuant to and subject
7 to article six of this chapter shall constitute the regional corporation
8 and such article six shall govern such New York city off-track betting
9 corporation. Each regional corporation shall be a body corporate and
10 politic constituting a public benefit corporation. Each corporation
11 shall be administered by a board of directors consisting of two members
12 from each participating county containing a city of over one hundred
13 fifty thousand in population, according to the last federal census, and
14 one member from each other participating county. Notwithstanding any
15 other provision of law to the contrary, the members shall be appointed
16 by the county governing body, and may, at the discretion of such govern-
17 ing body of counties which have a population of less than two hundred
18 thousand, include sitting members of such governing body. A member of a
19 governing body who is appointed a director after July first, nineteen
20 hundred ninety shall not be compensated by the regional corporation;
21 provided, however, that the mayor of a city of over one hundred fifty

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 thousand that has elected to participate in the management of a corpo-
2 ration pursuant to subdivision two of this section shall, with the
3 approval of the city's legislative body, appoint one of the members to
4 which the county containing such city is entitled. In the case of the
5 corporation established for the Suffolk region and Nassau region, the
6 board of directors of each corporation shall consist of three members
7 appointed by the governing body of each county, not more than two of
8 whom shall be members of the same political party. Each director shall
9 serve at the pleasure of the governing body or mayor appointing [~~him~~]
10 such director, as the case may be. A [~~chairman~~] chair shall be elected
11 by the members to serve a term of one year.

12 b. No person who has served as a board member or officer of the corpo-
13 ration shall within a period of ten years after such person's termi-
14 nation of such service, regardless of the reason for termination, (i) be
15 appointed or qualified as a member of the corporation; or (ii) appear,
16 practice before, or communicate with the corporation, directly or indi-
17 rectly, to promote or oppose the passage of resolutions by the board of
18 directors.

19 c. No person who is appointed to be a member of the board of directors
20 may attend or participate in any board meetings, including executive
21 sessions, until that person's application for a license has been
22 approved by the commission.

23 § 2. Subdivisions 6 and 7 of section 502-a of the racing, pari-mutuel
24 wagering and breeding law are renumbered subdivisions 7 and 8 and a new
25 subdivision 6 is added to read as follows:

26 6. a. No person who has served as a board member or officer of the
27 corporation shall within a period of ten years after such person's
28 termination of such service, regardless of the reason for termination,
29 (i) be appointed or qualified as a member of the corporation; or (ii)
30 appear, practice before, or communicate with the corporation, directly
31 or indirectly, to promote or oppose the passage of resolutions by the
32 board of directors.

33 b. No person who is appointed to be a member of the board of directors
34 may attend or participate in any board meetings, including executive
35 sessions, until that person's application for a license has been
36 approved by the commission.

37 § 3. Section 2 of part JJ of chapter 56 of the laws of 2023, amending
38 the racing, pari-mutuel wagering and breeding law, relating to the
39 membership of the board of directors of the western regional off-track
40 betting corporation, is amended to read as follows:

41 § 2. This act shall take effect immediately; provided, however, that
42 effective immediately, cities and counties may take any action necessary
43 to begin the selection and appointment process for new board member
44 terms pursuant to this act; and provided further, that upon selection of
45 new board members, cities and counties shall notify the corporation of
46 their respective appointments via certified mail; and provided further,
47 that this act shall expire and be deemed repealed [~~four~~] fourteen years
48 after such effective date.

49 § 4. This act shall take effect immediately; provided, however, that
50 the amendments to section 502-a of the racing, pari-mutuel wagering and
51 breeding law made by section two of this act shall not affect the repeal
52 of such section and shall be deemed repealed therewith.